

Smt. Shashi Lata v. Superintending Engineer, P.V.V.N. Ltd.

Allahabad High Court · Division Bench · 1 December 2016 · Writ-C No. 56840 of 2016 · **Writ disposed; EE to decide 6.5 application in six weeks.**

HEADNOTE

A pending representation for correction of an electricity bill is to be treated as an application under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of by directing the Executive Engineer to decide that application within six weeks of production of a certified copy, without examining the bill on merits.

FACTUAL SUMMARY

Smt. Shashi Lata filed a writ petition against the Superintending Engineer, Paschimanchal Vidyut Vitran Nigam Ltd., and two others, seeking a direction in respect of her electricity bill. Her representation for correction of the bill was still pending with the licensee. Counsel for both sides were heard. The Division Bench did not itself scrutinise the bill or the grounds of challenge, and recorded only that the representation remained undecided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-complaint

HOLDING

A pending representation for correction of an electricity bill is to be treated as an application under clause 6.5 of the Electricity Supply Code, 2005, and the Executive Engineer is to decide it within six weeks of production of a certified copy of the order. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A pending representation for correction of an electricity bill is to be treated as an application under clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL REQUIRED CORRECTION ON THE MERITS

Left to the Executive Engineer as a clause 6.5 application. ¶ 1